

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MARVIN DAVID,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER HAVLIK, Shield No. 14920, and
SERGEANT CARLOS VIERA, Tax No. 926259,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
October 14, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER CHRISTOPHER HAVLIK, Shield No. 14920, PSA 5, 221 E 123rd
St, New York, NY 10035
SERGEANT CARLOS VIERA, Tax No. 926259, PSA 5, 221 E 123rd St, New York, NY
10035

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MARVIN DAVID, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On October 15, 2014, at approximately 2:30 a.m., plaintiff Marvin David, while lawfully present inside of 130 East 115th Street, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and detention by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, detained, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Marvin David was a resident of the County of New York, State of New York.

3. POLICE OFFICER CHRISTOPHER HAVLIK, Shield No. 14920 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER CHRISTOPHER HAVLIK, Shield No. 14920, is and was at all times relevant herein, assigned to the PSA 5 precinct.

5. POLICE OFFICER CHRISTOPHER HAVLIK, Shield No. 14920, is being sued in his individual and official capacity.

6. SERGEANT CARLOS VIERA, Tax No. 926259 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT CARLOS VIERA, Tax No. 926259, is and was at all times relevant herein, assigned to the PSA 5 precinct.

8. SERGEANT CARLOS VIERA, Tax No. 926259, is being sued in his individual and official capacity

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On October 15, 2014, at approximately 2:30 a.m., plaintiff Marvin David was lawfully inside of 130 East 115th Street, New York, New York.

14. Notably, on October 15, 2014, was lawfully residing at 130 East 115th Street, Apt. 9E, New York, New York with his mother.

15. As plaintiff was on the phone with his girlfriend inside of the building, the defendant police officers stopped, questioned, and frisked plaintiff without reasonable suspicion, probable cause, or any legal basis.

16. Specifically, the defendant police officers unlawfully frisked plaintiff over his clothing, touching all areas of his body.

17. At no time did the defendant police officers recover any weapons, drugs, or illegal contraband from plaintiff.

18. Moreover, at no time did plaintiff commit a crime or give the defendant police officers an objective factual basis to suspect he was committing, had committed, or was about to commit a crime.

19. The defendant police officers asked for plaintiff's identification and plaintiff complied and produced his identification.

20. Notably, the identification that was provided to the defendant police officers had plaintiff's address listed as 130 East 115th Street, Apt. 9E, New York, New York.

21. As such, it was clear to the defendant police officers that plaintiff lived in the apartment building and therefore was lawfully inside of the apartment building.

22. Nevertheless, without any legal or factual basis, the defendant officers accused plaintiff of trespassing.

23. Plaintiff was unlawfully handcuffed and arrested without legal justification or probable cause.

24. Thereafter, plaintiff was transported to the precinct and was photographed, fingerprinted, and placed in a holding cell.

25. After approximately 5 hours in police custody, plaintiff was given a Desk Appearance Ticket for allegedly Trespassing and was released from the precinct.

26. Thereafter, the defendant police officers falsely communicated to the New York County District Attorney's Office that plaintiff had committed the crime of trespass despite knowing that plaintiff was lawful resident of the building.

27. Moreover, upon information and belief, the defendant police officers intentionally and maliciously withheld exculpatory evidence from the New York County District Attorney's Office, namely that plaintiff lawfully resided in the building.

28. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated.

29. Thereafter, plaintiff had to appear in Court on one occasion before all charges were dismissed and sealed on May 22, 2015.

30. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally conduct, enforce and sanction an unlawful vertical patrol and trespass arrest policy which has resulted in a pattern and practice of illegal stops, seizures, questioning, searches, and false arrests of residents of, and authorized visitors to, NYCHA residences.

31. Under the NYPD's unlawful trespass arrest practices, New York City Police Department officers conduct roving pedestrian checkpoints in and around NYCHA residences, wherein they indiscriminately stop and question every person they observe, without objective individualized suspicion of a crime and unlawfully arrest individuals for trespass without probable cause.

32. The NYPD's unlawful trespass arrest practices implemented by NYPD officers and supervisors fails to require that an arresting officer act upon observed behavior that reliably differentiates a suspected trespasser or "unauthorized person" in a NYCHA hallway from a lawful visitor in transit, or a building resident enjoying the common area of his own home.

33. Defendants' failure to provide adequate guidance, training, and support to NYPD officers regarding whom to stop, question, seize, search and arrest for trespass, results in a de facto roving checkpoint and a pattern and practice of unlawful stops, seizures, and arrests.

34. The only guiding principles provided to NYPD officers are consistent with, and reflective of, a policy, practice, and custom of reckless arrests based on less than probable cause.

35. As a result of defendant City of New York and the New York City Police Department's policy, practice, and custom of unlawful trespass arrest practices in NYCHA buildings, plaintiff, Marvin David, was subjected to an unconstitutional stop, question, frisk, arrest, and detention on the date of the incident.

36. The unconstitutional stop, question, frisk, and detention of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked seized, searched, detained and unlawfully arrested plaintiff in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his Constitutional rights.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's 5th Amendment Right Denial of Due

Process and Denial of Right to Fair Trial

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 51 with the same force and effect as if fully set forth herein.

53. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

54. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

55. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

56. In withholding/creating false evidence against plaintiff Marvin David, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a result of the foregoing, plaintiff Marvin David, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The vertical patrol policy and trespass arrest practices involve systemic stopping, seizing, questioning, and searching of any and all persons observed in common areas of NYCHA residences absent individualized suspicion.

62. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice, and/or custom of roving pedestrian checkpoints for general crime control wherein they indiscriminately stop and seize individuals in the absence of objective, individualized criteria in violation of the Fourth Amendment to the United States Constitution.

63. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of arresting individuals for trespass without probable cause to establish that a criminal offense has been or is being committed, as required by the Fourth Amendment to the United States Constitution.

64. These Constitutional abuses and violations were, and are, directly and proximately caused by policies, practices and/or customs devised, implemented, enforced, promoted, encouraged and sanctioned by the City of New York and the New York City Police Department, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise NYPD officers; (b) the failure to properly and adequately monitor and discipline NYPD officers; and (c) the overt and tacit encouragement and sanctioning of, and the failure to rectify, the NYPD's suspicionless stops, seizures, questions, searches and arrests for trespass.

65. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants,

defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

66. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

67. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

68. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, frisked, searched, arrested, and detained.

69. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

SIXTH CAUSE OF ACTION

Failure to Intervene

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

71. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein.

73. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

JURY DEMAND

76. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Marvin David demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 14, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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10035

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
October 14, 2017

_____/s/_____
STUART E. JACOBS